Colloquium 1

1st term

The legal system of England & Wales: general overview

1. Continental law: origin and development, codifications along national lines, court procedure.

Continental systems are known as codified legal systems because the law is contained in law codes. The law of continental Europe was originated in Ancient Rome, but when the Western Roman Empire fell under the onslaught of Germanic tribes, Roman law continued its existence in the Eastern (Byzantine) Empire. In the 6th century Byzantium gave legal history an outstanding legal document - the Justinian Code, created by the emperor Justinian.

There are two **main codifications** of civil law: French and the German.

In continental systems of law **court procedure** is inquisitorial. The judges hear criminal cases without a jury, and attempt to get at the truth by inquiring into the case, directing the investigation, and questioning witnesses. The role of the counsel (адвокат) for the prosecution and defense is asking additional questions of witnesses and summarizing the evidence at the end of the trial. The judge has the leading role in the trial: he investigates the case, tries it and passes sentence.

2. Common law: the Doctrine of Precedent, trial by jury, court procedure.

Common law is case law, which has been administered by the English courts.

The most important principle of English legal system to this day remains the **Doctrine of Precedent**. Under this doctrine, courts are bound by the decisions of previous higher courts, and when the essential elements of a case are the same as those of a previous recorded case, the judge has to reach the same decision regarding guilt or innocence. Besides case law which contained in judicial decisions, there is a growing body of statutory law, made by Parliament. The common law was modified and clarified by statutes, or they make rules where none existed before. But even statutes often need to be interpreted by the courts.

The **trial by jury** is one of the peculiarities of common law. Originally, the jurors were local people, respected in the community, and now they are laypersons, selected at random, who assist the judge in the administration of justice.

Court procedure is adversarial. Unless a procedural problem arises, the judge simply listens to the presentation of the prosecution and defense, who tries to produce the best evidence and destroy the case of the opposing party. The final decision to the accused is made by jurors, who brings the verdict.

3. **Choice of laws and forum shopping in the market for justice**.

Choice of laws – выбор права (до того, как возник спор, на этапе заключения договора например)
Forum shops – поиск удобного суда/подходящей юрисдикции (спор возник, происходит выбор юрисдикции)
In a global marketplace, the legal systems of different countries are in competition with each other. The notion of competition in the supply of justice is strange. Yet justice is an elusive concept, and there are many routes to it, all imperfect. Competition in legal services begins when, before they enter into a legal relationship, people and businesses search for the most appropriate legal framework. One element of that framework is the jurisdiction in which any dispute is to be resolved. This is the issue of the **choice of laws**.
Choice of laws is made before a dispute arises. **Forum shopping** is when competition takes place after the dispute has occurred. If choice of laws has many benefits, forum shopping has many disadvantages. Jefferson County, Mississippi, is the world centre of asbestos litigation. Not because that community has been specially damaged by the effects of asbestos, but because its judges and juries are famously sympathetic to plaintiffs. A jurisdiction benefits from forum shopping if its decisions are out of line with mainstream opinion, and the most common reason is that there is something wrong with its legal system.

4. **Sources of English law: common law.**

The concept of common law goes back to medieval times, when judicial principles shared by lawgivers in many regions of England gradually gained universal recognition in the whole country. The common law originally developed through the courts' decisions in cases involving **property**, **personal injuries**, **contracts** and some of the earliest identified **torts (те правонарушения, которые вначале были определены как деликты)**.
The common law consists of the **substantive law** and **procedural rules** that are created by the judicial decisions made in the courts. Although legislation may override such decisions, the legislation itself is subject to **interpretation** and refinement in the courts. The development and application of the common law system pivots upon the existence of a comprehensive system of reporting cases: The **Law Reports;** Butterworth's All England Law Reports [All ER]; Lloyds Law Reports.

5. **Sources of English law: canon law, custom, the EU sources.**

The growth of English law was greatly influenced by **canon law**, i.e., the law of the Roman Catholic Church. Many concepts of common law originated from the canon law: the nature of Christian marriage and family rights, the nature of criminal law and its close association with moral fault, **imprisonment** as a punishment for crime.
Custom - this source of law, once important, has now lost its significance. The laws and customs of England were welded into one system of law, e.g., monogamy, parental

rights, the right to use the seashore for navigation and fishing. However, very rarely custom can be a separate source of law. In this case it must be a local custom, sometimes even limited to a class of persons within that locality, e.g., fishermen.
There were 2 main sources there: the EU laws and the European Convention on Human Rights (ECHR) which came in form of various **treaties**, **directives**, regulations and rulings. All **disputable cases (спорные дела)** were taken to Strasbourg if all national **legal remedies** were **exhausted**.

6. Sources of English law: equity.

In modern legal texts, this word is unlikely to be used in the original etymological sense of 'fairness' or '(natural) justice', so literal translations are not recommended.
As a term of English law, equity is applied to certain concepts, principles and remedies that were formerly excluded by the common law but were gradually recognized, developed and administered in the Middle Ages by the Lord Chancellor in his role as 'keeper of the king's conscience'. Originally the principles concerned were related to property rights in the context of the possession and ownership of land deriving from the feudal system. As time went on, people grew increasingly dissatisfied with common law courts, which often produced unfair and **biased judgments.** Then people began to appeal to the Lord Chancellor in the clerical court, which made decisions on its own conviction. Equity, in a sense, was ultimate justice, which was above the existing law.

7. Sources of English law: legislation or statute law. The procedure of passing an Act in the British Parliament.

Parliament passes hundreds of new laws every year making modern legislation so precise and comprehensive that it is rather like a code in the Continental system. Statute law is the highest source of law, and is binding on everyone, including judges. Judges must apply the law; they cannot change it. In fact, they themselves often remark in their decisions and rulings that the making of exceptions to rigid rules is legislative, not judicial work.
All Acts must be submitted to both Houses of Parliament in the draft form of a **Bill**. The legislative process involves three **readings** in both Houses. At the first reading, the title is read to Members of Parliament (MPs); at the second reading, MPs **debate proposals**. Then the Bill is amended and re-presented. Finally, a Bill must receive **Royal Assent** from the monarch before it becomes law.

8. Law reports: structure, the language, the most authoritative sets of reports.

The development and application of the common law system pivots upon the existence of a comprehensive system of reporting cases. The ***Law Reports*** Сборник судебных решений**,** published annually by the Council of Law Reporting, are perhaps the most authoritative and frequently cited set of reports, differing from other series of law

reports, such as Butterworth's All England Law Reports [All ER] (Всеанглийский сборник судебных решений) or specialist reports like Lloyds Law Reports.
The court decision itself consists of two main parts. The first reflects the facts and essence of the case, the claims of the plaintiffs and the arguments of the defendants. The word *held* introduce the court's decision, together with an explanation of how the law applies to the situation in question. The background is stated in a plain, factual manner. Case reports contain a lot of specific legal language.

9. **Latin expressions in the legal profession.**

Latin expressions are used widely in the legal profession, particularly in court cases. There are many Latin terms in written English legal texts, although recent reforms in the English justice system have encouraged the use of English rather than Latin. Some Latin terms are used so frequently that they are in general English use (e.g., etc., ad hoc). It is useful to be able to recognise their meaning and a dictionary or online glossary will help.
Ad hoc – для конкретного случая
Affidavit – письменные показания под присягой
Caveat – приостановка в связи с заинтересованностью
Ex parte – в одностороннем порядке
In camera – закрытое заседание
Per pro – по доверенности
Bona fide – добросовестно
Ex gratia – добровольно
Ultra vires – выходя за рамки компетенции
Per se – как таковой

10. **Legalese. Specific features of legal writing.**

Characteristic features of legalese.

- Using latin terms (ultra vires, de jure, de facto)
- Using technical terms (subsidiarity; negligence; узко-специальные термины)
- Old-fashioned words (herein, hereto)
- Pairs of words with reciprocal meaning (lessor-lessee: пары слов с двусторонним значением (однокоренные) арендатор-арендадатель)
- Legal jargon (without prejudice to - без ущерба для, независимо от)
- Pairs of words /// triplets (синонимы - terms - существенные условия/conditions - дополнительные условия// benefits/advantages; /// build, erect and construct)
- Special meanings for words in ordinary use (determined)
- Vague words (слова с неопределенным значением; sufficient service - достаточное обслуживание; reasonable time - разумный срок)
- Long sentences with little punctuation (сложные предложения почти без знаков препинания)

- Inverting word order (title absolute - право собственности)
- Capital letters for important terms
- No personal pronouns
- Shall for obligation or duty (использование глагола для выражения обязательства; перевод в будущем времени)
- Shall in a directory sense (в значении предписания; переводится всего в настоящем времени)

11. The term “civil law”: origin, meanings.

The term civil law has a number of meanings. First of all, it was used in ancient Rome to distinguish the law found exclusively in the city of Rome from the law of all nations found throughout the empire. Later it came to distinguish continental law from common law, in other words Romano-Germanic law from Anglo-American law. The phrase is also used to denote private law, governing the relations between individuals, as opposed to public law and criminal law. Finally, the national law of a country is sometimes called civil law, in contrast to international law.

12. Classifications of law. Public law (constitutional law, international law, tax law, administrative law, criminal law).

The main branches of English public law are: constitutional law, administrative law, international law, tax law, and criminal law.
Administrative law is the law dealing with the functions and powers of government organizations (not the supreme executive and legislature) and their relations with one another and with citizens. It is the legal framework within which public administration is carried out.
Tax law is the law relating to taxes, a compulsory contribution by individuals and business to the state’s funds.
Criminal law is the law relating to crime, i.e. illegal conduct for which a person may be prosecuted and punished by the state. A crime is conceived as an offence against the public, although the actual victim may be an individual.
Constitutional law is the law relating to the legal structure of government and the relations between private citizens and the government. It is the legal framework within which all other laws operate.
International law is the body of legal rules that regulate relations between sovereign states. It is a special system of legal rules which is not part of the national law of a state, the latter also called *municipal law* or *domestic law.*

13. Classifications of law. Civil law (contract law, tort law, trust law, probate law, family law, employment law, land law).

The main, but certainly not all, branches of English civil law are: contract, tort, trust, probate, family, employment and land law.

Land law is the law which deals with rights and interests related to owning and using land.
Trust law is the law relating to trusts, i.e. arrangements whereby a person administers property for the benefit of another person or group of persons, or for a specific purpose, such as helping the poor.
Probate law is the law relating to arrangements for dealing with property after the owner's death.
Family law is the law relating to the organization of the family and the legal relations of its members.
Contract law is the law relating to contracts, i.e. legally binding agreements between two or more parties. A binding agreement is one that places a person or persons under legal obligation.
Tort law is the law relating to torts, i.e. wrongs committed by one individual against another individual's person, property or reputation.
Employment law is the law relating to the employment of workers: their contracts and conditions of work, trade unions and the legal aspects of industrial relations.